

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Souad Moussawi	Team: Team # 2	CCRB Case #: 200908612	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 05/29/2009 7:35 PM	Location of Incident: Kingston Avenue and Fulton Street	18 Mo. SOL 11/29/2010	Precinct: 79
Date/Time CV Reported Mon, 06/01/2009 12:01 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 06/03/2009 11:37 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Rachid Benlhousain	21282	945504	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Rachid Benlhousain	Discourtesy: PO Rachid Benlhousain spoke obscenely and/or rudely to § 87(2)(b)	A . Complainant Uncooperative

Synopsis

§ 87(2)(b) filed the following complaint on June 1, 2009 with IAB under log number 09-27099. The complaint was referred to the CCRB on June 3, 2009. On May 29, 2009, at approximately 7:35PM, on Kingston Avenue and Fulton Street in Brooklyn, § 87(2)(b) observed a male, identified via a search of the Booking Arraignment Disposition System as § 87(2)(b) walk by PO Rachid Benlhousain and an unidentified officer. § 87(2)(b) identified PO Benlhousain via his badge number (21282). PO Benlhousain said to § 87(2)(b) “What the fuck are you looking at.” § 87(2)(b) replied, “I did not say anything to you” and continued walking to the store. The officers followed § 87(2)(b) to the store and PO Benlhousain said, “Why the fuck you looking at me?” PO Benlhousain grabbed § 87(2)(b) and placed his hands behind in back. § 87(2)(b) and other witnesses asked PO Benlhousain and his partner why they were arresting § 87(2)(b) and the officers did not respond. § 87(2)(b) said, “I have identification. I did not do anything and I have no weapons. You are going to look stupid in front of the judge when you have to explain why I was arrested.”

First please call letters were sent to § 87(2)(b) and § 87(2)(b) on June 5, 2009. On June 5, 2009, the undersigned investigator contacted § 87(2)(b) via telephone and § 87(2)(b) scheduled an interview for June 15, 2009. § 87(2)(b) missed this interview. A missed appointment letter was sent to § 87(2)(b) on June 16, 2009. The undersigned investigator contacted § 87(2)(b) on June 16, 2009 and § 87(2)(b) scheduled another interview for June 29, 2009. § 87(2)(b) missed her second interview. The first please call letter sent to § 87(2)(b) was returned as- “Attempted Not Known, Unable to Forward.” A search of the Lexis Nexis and Department of Motor Vehicles databases confirmed the address on file for § 87(2)(b) and did not yield a telephone number. A search of the Coles directory yielded negative results for § 87(2)(b) and did not yield a telephone number for his apartment. A search of the Department of Correction database indicated that § 87(2)(b) in not currently incarcerated. A second please call letter was sent to § 87(2)(b) on June 16, 2009. A final please call letter was sent to § 87(2)(b) on June 29, 2009. § 87(2)(g)

§ 87(2)(b). *It is therefore recommended that this case be closed as Complainant Uncooperative.*

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: